

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
[SMT R SUJATHA AND OTHERS VS. STATE OF KARNATAKA
AND OTHERS]

19.03.2026

(VIDEO CONFERENCING / PHYSICAL HEARING)

CORAM: HON'BLE MR. JUSTICE B M SHYAM PRASAD
and
HON'BLE MR. JUSTICE ANANT RAMANATH
HEGDE

ORAL ORDER

(PER: HON'BLE MR. JUSTICE B M SHYAM PRASAD)

This writ appeal is listed with the appellants making a request for urgent hearing stating that the jurisdictional Revenue Authorities are acting in a highhanded manner in removing an asphalted road. Sri A Madhusudhana Rao, the learned counsel for the appellants, submits that the appellants have not been able to pay the court fee because of certain technical glitch in the Payment Gateway and there is nobody in the office premises to receive the court fee by cash. The learned counsel is permitted to pay the court fee on 23.03.2026.

On merits and the request for interim order, Sri A Madhusudhana Rao submits that the appellants, who assert ownership of the land adjacent to the road and a right of access through the road, have impugned the jurisdictional Deputy Commissioner's order [*the second respondent's order*] dated 20.01.2026 in W.P.No.6577/2026 and .as stated in Paragraph -12 of the Memorandum of Appeal, the Writ Court has refused to interfere with this order dated 20.01.2026 reading it as *an internal communication* between the second and third respondents but observing that if the authorities propose to remove the road on the ground that it is a Kaluve must proceed in accordance with the procedure contemplated under section 68 of the Karnataka Land Revenue Act, 1964 [*the Act*] if the same is applicable.

On the reasoning for moving this Court for urgent orders, the learned counsel invites this Court's attention to the photographs enclosed to the application for stay. These photographs read as under:



The second respondent's order/communication *inter alia* reads as follows.

- [a]** There is Raja Kaluve between certain survey numbers of Alibommasandra village and Muthanalur Amanikere.
- [b]** The residents of different villages including Jigala and Attibele have been using this covered Kaluve for the last 50 years.
- [c]** In 1998, under a particular Government Scheme, this road constructed over a Kaluve has been asphalted.
- [d]** The proceedings are initiated at the instance of somebody who is making repeated complaints.
- [e]** It is ascertained there is encroachment of a Kaluve after 50 years.

If Sri A Madhusudhana Rao points out that there are no proceedings before this alleged determination of encroachment, Sri. Mohammad Jaffar Shah, the learned Additional Government Advocate, submits on tentative instructions that the proceedings are after due notice.

The question for consideration, amongst many, would be *whether the second and the third respondents should have awaited the orders of the writ Court to be certain that action as afore would be justified, and if they need not have awaited could they have chosen either 18th or 19th 2026 [19th March 2026 being 'Ugadi] for action especially when there would be no court sittings on the next three days.* These questions, at this stage in this Court's opinion, assume significance to test the reasonableness of the action taken.

This Court is of the further opinion that to enable complete *adjudication, the jurisdictional Tahsildar [the third respondent]* must file an affidavit bringing on record the circumstances that could explain the reason for the action on either 18th or 19th of March 2026 as seen from the photographs made part of this order. The Tahsildar shall file this report by the next date of hearing.

When queried on the orders that must be until the next date of hearing, Sri. Mohammad Jaffar Shah, the learned Additional Government Advocate, submits that the action was only on 18th March 2026 and there has been no

action thereafter. To ensure that there is no precipitation and another request for extraordinary sitting before the regular date of hearing, it is made expressly clear and categorical that neither the third respondent nor any other officer claiming under the second respondent, or the jurisdictional Police, shall intervene until the next date of hearing. However, it shall be open to the third respondent to ensure that the access [as used] is motorable.

The Registry is directed to ensure that the PDF of this order is uploaded immediately and this order is communicated to the office of the Deputy Commissioner/ the Tahsildar over *email* [dcurban@nic.in].

The office is directed to relist this appeal on **25.03.2026.**

At this stage, Sri A Madhusudhana Rao makes a request for directions to the authorities to restitute the removed asphaltting and the consideration of this request is deferred till the next date of hearing.

The Registry is directed to furnish a copy of this order to the chambers of Sri. Mohammad Jaffar Shah, the learned Additional Government Advocate.

Sd/-

**(B M SHYAM PRASAD)
JUDGE**

Sd/-

**(ANANT RAMANATH HEGDE)
JUDGE**

nv

List No.: 1 Sl No.: 1